

ABI – Update for Health Claims Forum

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ABI

Association of British Insurers

Income Protection and Welfare Reform

The ABI has argued that IP can play a role in achieving a number of government policy objectives:

- Reducing welfare spending.
- Improving productivity.
- Halving disability employment gap.

We've been advancing this argument in a number of ways:

- Commissioned analysis by CESI last year. This formed the basis of our report 'Welfare reform for the 21st Century'.
- Joint event with The Work Foundation 'Managing the Health of Working Age People' in October.
- Ongoing discussions with DWP around the barriers to take up of IP.

Auto enrolment gives us a window of opportunity to promote IP to employers.



Insurer Access to Medical Records

Some insurers used SARs as an alternative to AMRA. We have always advised our members against this.

BMA strongly opposed to use of SARs.

The ICO's letter of 14th July concurred with this view.

The ABI has been engaging with the ICO to ensure that their decision is properly enforced:

- Christopher Graham spoke at the ABI's Data conference, welcoming the ABI's engagement on the issue and made clear that there will be consequences for insurers who continue to use SARs.
- James Dalton and Charlie Campbell met with representatives from the ICO on the 30th October. The point was made that we expect them to make clear what steps they will take against insurers who continue to use SARs. They agreed to write to us in the near future on this point.

Moving forward, all stakeholders must work together to improve the AMRA route. Currently, it is not fit for purpose and places an unfair burden on insurers.

- We don't have all the answers – but this must be a consultative process and we'd like to hear your views!

Insurer Access to Medical Records - continued

The ICO wrote back to the ABI on 20th November setting out its approach to insurers who continued to use SARs:

- *“Under section 40 of the DPA the Information Commissioner has the power to issue an enforcement notice if he is satisfied a data controller has contravened, or is contravening, any of the data protection principles.”*
- *“The Information Commissioner has not issued an enforcement notice at this stage, nor has an assessment been made of any particular data controller’s processing under Section 42. An organisation processing personal data in contravention of the DPA risks an adverse assessment being made against them, being served with an enforcement order or fined..... In addition, an organisation may be subject to civil action by aggrieved individuals. ”*
- *“We should make clear we are focused on ensuring all organisations are meeting their legal obligations as previously expressed, and we are taking steps to address any outstanding matters as quickly as possible.”*

Separate to this letter – the ICO have informed us that they believe SARs are not being offered by any insurer. We have asked for evidence confirming this.



ABI partnership with MAS

The ABI initiated a partnership with the Money Advice Service in order to increase awareness and knowledge of both IP as a product, and the risks of not having a financial safety net. So far this partnership has involved:

- **Rewriting the Protection insurance pages on the MAS website** – The information about Protection on the website was fairly sparse. It is now much more comprehensive.
- **#lifelifeprotectit** – A Twitter campaign to increase awareness of the need to protect oneself against the financial effects of having to leave work due to illness or injury, either by increasing savings levels or wider take up of Protection insurance.

The next step will be to work with MAS to develop a household benefits calculator to allow people to better understand how much of their household income they would lose if they left work.



Other ABI news

- New Head of Protection and Health – Alice Pilia
- New Building
- Associate membership



Any Questions?



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